

1. (1) इन नियमों का संक्षिप्त नाम औषधि (संशोधन) नियम, 2022 है।
(2) ये नियम 1 जनवरी, 2023 को प्रवृत्त होंगे।
2. औषधि नियम, 1945 के नियम 96 में, उप-नियम (4) के बाद निम्नलिखित उप-नियम अंतःस्थापित किया जाएगा, अर्थात्:—

"(5) भारत में विनिर्मित या आयातित प्रत्येक सक्रिय भेषज संघटक (प्रपुंज औषधि) के आधान के प्रत्येक स्तर पर इसके लेबल पर त्वरित प्रतिक्रिया कोड लिखा जाएगा, जिसमें सॉफ्टवेयर एप्लीकेशन के साथ पढ़ने योग्य डाटा या सूचना होगी ताकि आसानी से उस पर नजर रखी जा सके और पता लगाया जा सके। इन डाटा या सूचना में निम्नलिखित न्यूनतम विशिष्टियां शामिल होंगे, अर्थात्:—

- (i) अद्वितीय उत्पाद पहचान कोड,
- (ii) एपीआई का नाम,
- (iii) ब्रांड का नाम (यदि कोई हो),
- (iv) विनिर्माता का नाम और पता,
- (v) बैच संख्या,
- (vi) बैच का आकार,
- (vii) विनिर्माण की तारीख,
- (viii) समाप्ति या पुनः जांच की तारीख,
- (ix) सीरियल शिपिंग आधान कोड,
- (x) विनिर्माण अनुज्ञप्ति संख्या या आयात अनुज्ञप्ति संख्या
- (xi) अपेक्षित विशिष्ट भंडारण स्थिति (यदि कोई हो)।"

[फा.सं. एक्स.11014/17/2019 – डीआर]

डॉ. मनदीप के भण्डारी, संयुक्त सचिव

टिप्पण:- मूल नियम, भारत के राजपत्र में अधिसूचना संख्यांक एफ.28-10/45-एच (1), तारीख 21 दिसम्बर, 1945 द्वारा प्रकाशित किए गए थे और अधिसूचना संख्यांक सा.का.नि. 848(अ), तारीख 9 दिसंबर, 2021 द्वारा अंतिम बार संशोधित किए गए थे।

MINISTRY OF HEALTH AND FAMILY WELFARE

(Department of Health and Family Welfare)

NOTIFICATION

New Delhi, the 18th January, 2022

G.S.R. 20(E).— Whereas a draft of certain rules further to amend the Drugs Rules, 1945, was published as required under sub-section(1) of section 12 and sub-section(1) of section 33 of the Drugs and Cosmetics Act, 1940 (23 of 1940) *vide* notification of the Government of India in the Ministry of Health and Family Welfare (Department of Health and Family Welfare) number G.S.R. 567(E), dated the 8th August, 2019, in the Gazette of India, Extraordinary, Part II, section 3, sub-section (i), inviting objections and suggestions from persons likely to be affected thereby before the expiry of a period of thirty days from the date on which the copies of the Official Gazette containing the said notification were made available to the public;

And whereas, copies of the said Official Gazette were made available to the public on the 10th August, 2019;

And whereas, objections and suggestions received from the public on the said rules have been considered by the Central Government;

Now, therefore, in exercise of the powers conferred under sections 12 and 33 of the Drugs and Cosmetics Act, 1940 (23 of 1940), the Central Government, after consultation with the Drugs Technical Advisory Board, hereby makes the following rules further to amend the Drugs Rules, 1945, namely:—

1. (1) These rules may be called the Drugs (Amendment) Rules, 2022.
(2) They shall come into force on the first day of January, 2023.
2. In the Drugs Rules, 1945, in rule 96, after sub-rule (4), following sub-rule shall be inserted, namely:—

“(5) Every active pharmaceutical ingredient (bulk drug) manufactured or imported in India shall bear Quick Response code on its label at each level packaging that store data or information readable with software application to facilitate tracking and tracing. The stored data or information shall include the following minimum particulars, namely:—

 - (i) Unique product identification code,
 - (ii) Name of the API,
 - (iii) Brand name (if any),
 - (iv) Name and address of the manufacturer,
 - (v) Batch no.,
 - (vi) Batch size,
 - (vii) Date of manufacturing,
 - (viii) Date of expiry or retesting,
 - (ix) Serial shipping container code,
 - (x) Manufacturing licence no. or import licence no.
 - (xi) Special storage conditions required (if any).”.

[F.No.X.11014/17/2019 -DR]

Dr. MANDEEP K BHANDARI, Jt. Secy.

Note:— The principal rules were published in the Official Gazette *vide* notification number F.28-10/45-H (1) dated 21st December, 1945 and last amended *vide* notification number G.S.R.848(E), dated the 9th December, 2021.